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Submitter Information

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General Comment

The precedent this sort of legislature could set amounts to very muddled waters. What you call "burdensome" is an extensive legal framework that has been built for decades, especially as it pertains to how copyright is handled on the internet.

First, we have extensive copyright protections for creators and their works, however abuse-able or oppressive they may be. There's plenty of legal precedent already set as to the legality of distribution of copyrighted works, and effectively throwing out all of that for the sake of making "AI". As such, only that which is specifically classified as "Public Domain", in which any previous copyrights have expired years ago. Failing that, there should be much, MUCH more effort to get in touch with the creators of these items which some may use to train their "AI" models, so as to respect the copyright-holder's intellectual property rights. Some may argue that this is "too difficult" or "would take too much time", and I find these arguments moot in face of the moral and legal bankruptcy of the current methods of "acquiring" this material which they try to train their models on. Just because something is "posted online and therefor free" does not mean that such material, whether it's literature or other forms of media including photos, art, audio and video, is "free to use", especially when it concerns monetization of the results of using that material.

Second, the reliance of "AI" training that is centered into a handful of corporations comes into question as these training methods/models begin to hit a wall, that no amount of computing power can seem to break through with current methods and hardware. This has lead to "AI" becoming increasingly funding and energy-hungry, neither of which are sustainable in the near or long term. Fresh water resources are already becoming less and less accessible due to pollution, never mind the amount needed to cool the data-centers that house these training systems. Clearing land for renewables or burning more fossil fuels solely to power these centers isn't ecologically sustainable in the long-term. Various regions of this country are experiencing heavy drought, with ground water sources being depleted rapidly from various sources as it is, which makes the "required" water-cooling of these data-centers impractical if not malicious if they're given clearance to operate in these regions.

Third, in regards to a point made in the second talking point, there needs to be a dramatic change or evolution in not just hardware, but also in algorithms and training methods, that closed-source systems and methods are falling drastically behind on in terms of over-all training performance and accuracy. We have seen this with the industry-shaking release of China's Deepseek-r1, which was trained on significantly less powerful hardware and for a fraction of a fraction of the cost of other major competitors like OpenAI (which was intended to become open-source until corporate investors got a hold of it) or Meta. This revealed that investing more into obsolete training methods was not worth the slim returns it was providing, and that a more efficient means of training can be done.

It's time to realize that just throwing tons and tons of data at a machine and asking it to figure it out on its own has not only proven to be legally dubious, but is also inefficient. Meta has recently claimed they didn't pirate any training material, and IF THEY DID, they didn't "seed" it (allowing others to access the material so that they, too, can download the material in a still legally dubious manner), which doesn't matter when it comes to illegally downloading copyrighted material according to precedent set by the DMCA (Digital Millennium Copyright Act) and by other copyright-intensive corporations such as Disney and others.

Back in the day, legislators referred to this type of illegal downloading as "piracy" (though it's more accurate to call it "counterfeiting" as it involves illicit copies, not out-right deprivation of goods as in the case of piracy), and many people were subjected to heavy fines, if not jail/community service time. Some of the big figures who host these sorts of services have faced a lot of legal scrutiny from corporations and legislators the world over, so it's shocking to me that suddenly we're considering it to be "perfectly legal, so long as we can get a one-up on China/other competitors".

As such, I find it necessary to more deeply review the moral, legal, ecological, and energy requirements that are "deemed necessary" to train "AI", and to find more effective means of addressing all of these problems, if the long-term goal is to "change the world".